

Application for Case Management Order Without Notice or Attendance Form 11

Provincial Court Family Rules

You can complete and file most family forms online using the Family Law Act Online Forms Service.

Access the service at justice.gov.bc.ca/apply-for-family-order.

The free service includes guided pathways that ask you questions and put your answers into the required court forms. When you're finished, you can save and file your forms electronically or print them to file in person.



A PDF version of this form is available online for download at www.gov.bc.ca/court-forms.

For courthouse locations, addresses, and contact information visit:

www.gov.bc.ca/courthouselocations

Need assistance with how to complete this form?

Refer to the guidebook if you need more information about applying for a case management order and how to complete this form. Find it online, with interactive links, at www.gov.bc.ca/court-forms or pick up a printed copy from your local court registry.

Family law:

The [Provincial Court Family Rules](#) set out the steps that you must take and the forms you must complete in a family law case. These rules apply to cases in Provincial Court about matters under the [Family Law Act](#) and the [Family Maintenance Enforcement Act](#).

You can find the Rules and Acts on the BC Laws website at www.bclaws.gov.bc.ca.

Preparing an Application for Case Management Order Without Notice or Attendance Form 11

Complete this form if you need a **case management order** that can be made **without notice or attendance at a court appearance**.

Usually, an application for an order must be made with notice to all other parties so that they can decide if they want to participate in the application. There are circumstances when the court may make an order without notice and without you having to attend a court appearance, such as when you are asking for an order to help you serve the other party with documents or you need a court order about how you may attend court or about filing a document.

The case management orders that can be requested without notice and without attendance at a court appearance are listed in Part 3 of this form and under [Rule 62](#) and [Rule 65](#).

When you make an application without notice or attendance, it is up to the judge to decide if the order can be made without notice or attendance at a court appearance. After reviewing your application, if the judge thinks notice to another party or your attendance in court is needed, the registry staff will let you know. Usually, the order can be made without having a court appearance.

To apply for these case management orders if they are by consent or you want a court appearance, you can instead make your application using the [Application for Case Management Order Form 10](#).

For all other case management orders, you must apply using the [Application for Case Management Order Form 10](#). The case management orders a judge may make are listed in Part 4 of Form 10 and under [Rule 62](#).

NOTE: You will not have to fill out every page of this form. Depending on the case management order that you need, you must complete between 2 to 6 pages.



Need legal help?

It's important to understand the law and make sure you have the right information. If you don't, it can make solving your problem harder. Getting advice from a lawyer can help. You can find a lawyer through:

Legal Referral Service

Visit <https://bclegal.help/> or call at 604-687-3221 to consult a lawyer for up to 15 minutes for free

Legal Aid, Duty Counsel and Family Advice Lawyers

Visit <https://legalaid.bc.ca/> or call 1-866-577-2525

Legal Services and Resources

Visit the ClickLaw Legal Services page at www.clicklaw.bc.ca/services



Filling out the form and preparing to file it

Make sure you follow the instructions in the form and include all the required information. You don't need to use any special wording. Try to be clear and concise.

If you complete the form by hand, be sure it's readable.

How do I prepare the form for filing?

- collect the form and schedule(s) you completed
- if you are applying to recognize an extraprovincial order, collect the certified copy of the original order
- print or make copies of all documents: one set for you, one set for the court, and one set for each other party
- staple or secure each package of documents together



Filing the application at the registry

After you've filled out your form, you must file it at the [Provincial Court Registry](#):

- where the existing Provincial Court case with the same parties is filed (you already have a court file number)
- nearest to where the child lives most of the time if the case involves a child-related issue, or
- nearest to where you live if the case does not involve a child-related issue

File the form:

- electronically using the [FLA Online Forms Service](#)
- in person at the court registry
- by mail
- by email, as referenced in Notice to the Profession and Public [NP 28 Current Court Operations](#), or
- by fax filing using the [Fax Filing Cover Page Form 52](#)

There are no fees for filing Provincial Court family documents.

Be sure to bring all copies of the documents to the registry if you are filing in person.

The registry clerk will review your package to make sure it's complete before filing it. You'll be given a copy for your records along with a copy for the other party.



Judge review of application

A judge can make decisions based only on the information presented by the parties. In addition to your application, you can provide evidence including any additional affidavit(s).

Please ensure you have provided full responses to all parts of the form that apply to you.

A judge reviewing an application for a case management order without notice or attendance may do any of the following:

- approve and sign the order without the need for you to come to court
- ask you to provide more information or evidence in writing or by coming to court to give that information
- require that notice be given to any other parties
- reject the application with an explanation

Depending on what you are requesting on your application, it may take the judge a few days to review your application. The registry staff will let you know when you can expect to hear from them.



Serving the order and application

If the judge grants your order, you must serve a copy of the order on each other party.

The order can be served by **ordinary service to the address of service** for each party. Their address for service is the address they have provided to the court.

Note: If the application was made to allow service of a document using an alternative method of service, the order can be served along with the document you were asking to serve using the method of service ordered by the judge.

A party who does not have an address for service must be served by **personal service**. An adult (at least 19 years old) who is not a party must hand-deliver the documents to the party to be served. A party may serve a person who is not a party.

See the guidebook if you need more information about serving the order.

You may need to prove service of the documents took place. The person serving the documents must complete a [Certificate of Service Form 7](#) to prove service of the document. You must attach a copy of the documents to the Certificate of Service. Remember to make a copy before the documents are served.

Application for Case Management Order Without Notice or Attendance Form 11

Provincial Court Family Rules
Rules 62, 63, 65 and 78

COURT STAMP

Registry location:

Court file number:

Document number:

For registry use only

This Application for Case Management Order Without Notice or Attendance sets out the details of a case management order that a person is applying for without notice to another party and without attendance at a court appearance.

Please read before completing the form:

- You must complete the main application and any applicable schedule for your application identified in Part 3 of the main application.
- For guidance filling in this form, please read the guidebook. The guide is available online at www.gov.bc.ca/court-forms or from your local court registry.



For more information about case management orders, see the guidebook.

Part 1 | About the parties

1. My full name is:
Full name of party
- My date of birth is:
(dd/mmm/yyyy)
2. The other party's full name is:
Full name of party/parties

Part 2 | Application without notice

3. ☐ I am **applying** for a case management order **without notice** to any other party. I understand that **I will be required to serve a copy of any order** I receive on each other party along with a copy of this application and any supporting document(s).



To apply with notice, you can file an Application for Case Management Order Form 10.

Part 3 | About the order

You can apply for one or more case management orders using this form.

4. I am applying for the following case management order(s):
Select all options that apply and complete the required schedule(s)
- ☐ Allowing a person to **attend a court appearance** using another method of attendance
→ *Complete Schedule 1*
- ☐ **Waiving or modifying** any requirement related to **service or giving notice** to a person, including allowing an alternative method for the service of a document
→ *Complete Schedule 2*
- ☐ **Waiving or modifying any other requirement** under the rules
→ *Complete Schedule 3*
- ☐ Requiring **access to information** in accordance with **section 242 [orders respecting searchable information]** of the *Family Law Act* → *Complete Schedule 4*
- ☐ Authorizing an official of the court, in accordance with section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada), to make an application under section 12 of that Act for the **release of information**
File a criminal record check and completed affidavit that meets the requirements of sections 8 and 9 of the Family Orders and Agreements Enforcement Assistance Act (Canada)
- ☐ **Recognizing an extraprovincial order** other than a support order
→ *Complete Schedule 5*



You can apply to modify the service or notice requirements if you have an urgent application.



You can apply to modify the reply period if you have an urgent application.



For more information about the requirements for the affidavit, see the guidebook.

Part 4 | Information about children

5. Select the correct option below and provide the additional information if applicable.

- ☐ I am not a party to the case
- ☐ I am a party to the case and the case **does not involve a child**-related issue
- ☐ I am a party to the case and the case **involves a child**-related issue about the following child or children:

Provide the requested information below for each child

Child's full name

Child's date of birth

(dd/mmm/yyyy)

Part 5 | Filing location

6. I am filing this application **in the court registry**:

Select only one of the options below

- ☐ Where my **existing case** with the same party/parties is located. I already have a file number.
- ☐ Closest to **where the child lives** most of the time, because my case involves a child-related issue
- ☐ Closest to **where I live** because my case does not involve a child-related issue
- ☐ Permitted by **court order**

Part 6 | Address for service

7. My **address for service** of court documents and contact information is:

You must provide an address for service and contact number, but it does not have to be your own if you don't want to

Address:

City:

Province:

Postal Code:

Email:

Telephone:

Lawyer's name and firm name (if applicable):



For more information about how this information will be used and who will have access to it, see the guidebook.

IMPORTANT NOTE:

A judge reviewing an application for a case management order without notice or attendance may do any of the following:

- approve and sign the order without the need for you to come to court
- ask you to provide more information or evidence in writing or by coming to court to give that information
- require that notice be given to any other parties
- reject the application with an explanation

Attendance using another method of attendance

Complete this schedule only if you are applying for an order to allow a person to attend a court appearance using another method of attendance other than the default method.



Part 1 | About the order

1. I am applying for an **order to allow:**

- ☐ Me
- ☐ My lawyer (*provide full name of lawyer*):
- ☐ Other (*specify name and role*):

to attend at the:

- ☐ Family management conference
☐ Family settlement conference
☐ Trial preparation conference
☐ Hearing
☐ Other (*specify*): _____

scheduled for: at by
Date (dd/mmm/yyyy) Time Method of attendance

Date (dd/mmm/yyyy)

Time

Method of attendance

by another method of attendance as follows:

- ☐ In person
- ☐ By telephone
- ☐ By video conference
- ☐ Other means of electronic communication (*specify*):

Part 2 | Documents for court appearance

2. The documents I may want to refer to in court have been submitted to the court registry and received by the other party

- ☐ Yes ☐ No



Part 3 | Reasons for attending by another method of attendance

3. The request to attend by another method of attendance is being made because:

List the reasons for not being able to attend by the default method of attendance and/or why you need to attend using the other method of attendance



- the distance between locations
- illness or disability
- financial cost
- expense incurred, or savings realized, by using electronic communication
- concerns related to security, including risk of family violence
- difficulty conducting the appearance using electronic communication

Rule 164

Schedule 2

Waiving or modifying requirement related to service or giving notice

Complete this schedule only if you are applying for an order to waive or modify any requirement related to service or giving notice, including allowing an alternative method for the service of a document.



For more information about requirements related to service or giving notice, see the guidebook.

Part 1 | What are you applying for

Depending on the order you need, the court requires different information.

1. I am applying for an order to:

Select each applicable option and complete the required part(s)

- ☐ **Waive** a requirement related to service or giving notice → *Complete Part 2*
- ☐ **Modify** a requirement related to service or giving notice → *Complete Part 3*
- ☐ **Allow service** of a document using an **alternative method** → *Complete Part 4*



If a requirement is waived, it means it no longer applies.

The court can order that an application proceed without notice to a person only in certain circumstances set out in the Rules.

If a requirement is modified, you still need to meet the requirement, but it has been changed.

Part 2 | Waive a requirement – Complete this part only if you are applying to waive a requirement related to service or giving notice.

Judges normally hear from all parties before making decisions. When, for example, there is urgency or risk of harm, the court could hear from only one party.

2. I am applying to **waive the requirement** for service or giving notice to a person of the following document(s):

Select all options that apply

- ☐ Application About a Priority Parenting Matter
- ☐ Application About a Family Law Matter
- ☐ Subpoena
- ☐ Order
- ☐ Other (*specify*):

3. The **facts** on which this application is based **are as follows**:

Explain why you are making the application and why the order you are requesting should be made



Remember to include:

- why the application or your situation is urgent or what special circumstances exist,
- why the other party should not be served or given notice, and
- what you believe will happen if the other party is served or given notice.

Part 3 | Modify a requirement – Complete this part only if you are applying to modify a requirement related to service or giving notice.

If obtaining an order from the court is time sensitive, the court may allow less than the required amount of notice. If there are special circumstances requiring more time to prepare to attend court, the court may allow more than the required amount of notice.

4. I am applying to **modify the requirement** for service or giving notice to a person of the following document(s):

Select all options that apply

- ☐ Application About a Priority Parenting Matter
- ☐ Application About a Family Law Matter
- ☐ Subpoena
- ☐ Order
- ☐ Other (*specify*):

5. The **details of the order** I am applying for are as follows:

Explain how you want the requirement for service or giving notice to be modified

6. The **facts** on which this application is based **are as follows**:

Explain why you are making the application and why the order you are requesting should be made



Remember to include:

- why the application or your situation is urgent or what special circumstances exist,
- why the requirement should be modified, and
- how it will benefit the case proceeding.

Part 4 | Allow service of a document using an alternative method

Complete this part only if you are applying to allow service using an alternative method.

Service of a document must be done according to the rules unless the court makes an order allowing another method of service

Person and documents to be served

7. I need to serve _____ with the **following document(s)**:

Full name of person

List each document you need an order from the court to serve using an alternative method



To make an order that the document be served using an alternative method of service, the court must be satisfied that the person to be served cannot be found after a diligent search, is evading service of the document or is temporarily outside British Columbia [Rule 182].

Reason for application

8. Select whichever option is correct and complete the requested information

- ☐ I **do not know where to find** the person to be served. I have made the following **efforts to find them**:

Explain how you have tried to locate them, where you have searched, and who you have contacted



You may have some contact information for the person, but you do not know how to find them in person.

- ☐ I believe the person to be served is **avoiding service** of the document(s) or is **temporarily outside of British Columbia**. I believe this to be true because the following **efforts have been made to serve** them with the document(s):
Explain when and where you tried to serve the person and what happened when you tried



You can include what you saw, who you may have talked to and what they said.

9. I know the following **information about the person's** address, location, contact information or who might be able to get in touch with them:

Include the information you know, how you know the information and when it was last confirmed or became known to you

Order for alternative method of service

10. I am applying for an order **to be allowed to serve the document(s) in the following manner:**

Select only one option and provide the requested information

- ☐ Posting the documents on the door of the person's residence at *(provide address)*:

Address	City

- ☐ Leaving the documents with a relative or other adult person to give to the person to be served:

Full name of relative/adult person:

Relationship to person to be served:

- ☐ Mailing the documents by ☐ **registered mail** ☐ **regular mail** to:

Address	City

- ☐ Sending the documents to the person's email at:

Email

- ☐ Sending the documents by text message to the person's cell at:

Cell number

- ☐ Sending the documents by instant messaging to the person to be served through

	at	
Social platform		Account identifier (handle, number, etc.)

- ☐ Leaving the documents at the person's last known address at *(provide address)*:

Address	City

- ☐ Other method *(specify)*:

11. I believe the alternative method of service I am requesting **will bring the documents to the attention of the person to be served** because:

Waiving or modifying any other requirement under the rules

Part 1 | Requirement I need to waive or modify

- 

For more information about the requirements under the rules you may need to waive or modify, including if you need an urgent court order, see the guidebook.

Part 2 | About the order

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If a requirement is modified, you still need to meet the requirement, but it has been changed. A modified requirement could include changing when a document can be filed or when a step under the rules must be taken.

Part 3 | The facts

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- if you can complete the requirement later, and when;
- if this application is being made because you need an urgent order, what the urgent application is about and who is involved; and
- how the order being made will benefit the case proceeding.

Schedule 4 | Access to Information Section 242 *Family Law Act*

Complete this schedule only if you are a search officer applying for access to information in accordance with section 242 [*orders respecting searchable information*] of the *Family Law Act*.

Part 1 | About the order

1. The **details of the order** I am applying for are as follows:

Part 2 | The facts

2. The **facts** on which this application is based **are as follows**:



A search officer is a person appointed under section 236 of the *Family Law Act*.

A search officer can make an application under section 242 of the *Family Law Act* if a person has refused or not adequately complied with a request under section 239 of the Act.

Schedule 5 | Recognizing an Extraprovincial Order other than a support order

Complete this schedule only if you have an order from another province or territory in Canada for parenting arrangements, contact with a child, guardianship or similar that you would like recognized in British Columbia so that it may be treated as if it were an order made in British Columbia.



For more information about how to register a support order from another province or territory in Canada for enforcement in BC, see the guidebook.

Part 1 | About the order

1. I am applying for **recognition of the attached extraprovincial order** made on at
- Date (dd/mmm/yyyy) Court location City Province/Territory
- about parenting arrangements, contact with a child, guardianship, or an order that is similar in nature.

☐ **A certified copy of the order is attached.**



You must attach a certified copy of the order to your application for filing. A certified copy is a copy of the original order from the other court that has been endorsed using a stamp or certificate by the court to say it is a true copy of the original. Contact the original court location to get a certified copy.

Part 2 | Other party's contact information

2. The **contact information for the other party**, as I know it, is:

Address:		
City:	Province:	Postal Code:
Email:	Telephone:	